

End Recipient Data Acknowledgement Form: HubSpot

1. **Elden Software** ("Partner") makes available the following Covered Application that is subject to the terms of Shopify's Partner Program Agreement (available at: <https://www.shopify.ca/partners/terms>)

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2. Arising out of or in connection with **HubSpot's** relationship with Partner or **HubSpot's** access to any Covered Application, **HubSpot** may have access to certain data in respect of Shopify Merchants. For the purposes of this form, Merchant Data may include, but is not limited to:

a. Merchant Account Data, Orders, Customers, Products

b. Product Variants, Line Items, Companies, and Abandoned Checkouts

3. By accessing or using any such Merchant Data, **HubSpot** acknowledges and agrees that (i) such access to or use of Merchant Data is subject to Shopify's API Terms (available at: <https://www.shopify.com/legal/api-terms>), and (ii) **HubSpot** will not access or use Merchant Data for the purposes of soliciting Merchants to leave the Shopify Service or permit any third party to access or use Merchant Data for such purposes.

Acknowledged by: HubSpot

[End Recipient = receives/accesses Merchant Data through Partner]

For HubSpot:

By: _____

(signature of Authorised End Recipient Representative)

Name: _____

Title: _____

(e.g. CEO, Director of Product)

Date: _____